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DISCORD PRIVACY POLICY

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WELCOME!

Discord

Open Discord

This Privacy Policy explains how we collect, use, store, protect, and share your personal information through our services. If you reside in the European Economic Area ("EEA"), Discord Netherlands BV is the "data controller" of your personal information collected through the services (as defined in our Terms of Service). For everyone else, Discord Inc. is the data controller. It's important that you read this entire policy, but here's a summary to get you started:

- **We care a lot about privacy**. We are committed to enabling you to build meaningful connections around the joy of playing games through voice, video and text features. Respecting user privacy is a key part of that mission.
- **We don't sell your personal information**. Our business is funded through subscriptions, paid products, and sponsored content, not based on selling your personal information to third parties.
- **We limit what information is required**. We require the information that enables us to create your account, provide and maintain our services, meet our commitments to our users, and satisfy our legal requirements. The rest is optional.
- **We care deeply about safety**. Our dedicated Trust and Safety team works hard to help keep our users safe. We also use certain information to help us identify violations of our terms and policies (such as our Community Guidelines) in order to prevent harmful content or conduct on the services.
- **We give you control**. We give you the ability to control your privacy on Discord.

A LITTLE BIT ABOUT DISCORD

Discord enables you to build meaningful connections around the joy of playing games through voice, video, and text features. Whether you're part of a club, gaming group, or just a handful of friends that want to spend time together, Discord makes it easy to connect with friends.

Our “services” has the same meaning as defined in the Terms of Service. They include the Discord app, which can be accessed on mobile, web, desktop, console, or ev home appliance—any device with a web browser and internet connection. We also have a website, blog, and support center, and we may collect your information through other means like surveys, emails, and social media. If we build another product, our services include that too.

As explained in our Terms of Service, we allow users to add content to the services in a number of different ways, including via direct messages and in smaller and larger spaces. If you share content within larger spaces, that content may be accessed by many people, including people you do not know. For example, some servers are available in the Server Discovery section of the app and do not require an invite link to join. Other server owners may publish their server invite link on public websites. Anyone can access these servers, and you should be aware that server owners or admins set these permissions, and like the size of a server, the permissions may change over time.

We may also use content posted in larger spaces to help us develop, improve, and power our services, including features that help you catch up on conversations and safety features that identify harmful content on the services and support the enforcement of our Terms of Service and Community Guidelines. These things are important to us, and we believe they will make Discord even better for our users. We will always try to let you know the type of space you are in (although we don’t control where invite links are shared or the permissions for that server). You can limit the extent to which your content is used for these purposes as described in the “How to control your privacy” section below. You can learn more about our approach to safety and content moderation, including how we use your information for these purposes, in our Safety Center. You should take all of this into account when you are using our services, and choose the spaces, features, and settings that are most appropriate for your content.

We don’t make money from selling your personal information to third parties. Our business is funded through subscriptions, paid products, and sponsored content (like Quests and other sponsored formats).

THE INFORMATION WE COLLECT

We collect certain information when you use Discord. This includes information you provide to us, information we collect automatically, and information we receive fror

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Information you provide to us

- **Account information**. When you create a Discord account, you can come up with a username and password, and provide a way of contacting you (such as an email address and/or phone number). You'll also need to provide your birthday. In some cases, we may require additional information to verify your age. You may be required to verify your account or provide additional information (like a verified phone number) to your account. You may also have the option to add your name or choose a display name.
- **Content you create**. This includes any content that you upload to the service. For example, you may write messages or posts (including drafts), send voice messages, create custom emojis, or post other content that you create with features that we develop. You may also upload and share files through the services. This also includes your profile information and the information you provide when you create servers. We generally do not store the contents of video or voice calls or channels. If we were to change that in the future (for example, to facilitate content moderation), we would disclose that to you in advance. We also don't store streaming content when you share your screen, but we do retain the thumbnail cover image for the stream for a short period of time. We may build features that help users engage with voice and video content, like create or send short recordings.
- **Payment information**. If you buy any paid services through Discord, you may need to submit a valid payment method and associated billing information, including your full name and billing address. Our payment processors, like Stripe and PayPal, receive and process your payment information. Depending on the processor, we may also receive and store certain billing information, including the last four digits of the credit card number associated with the transaction. If you sell something through Discord, you may be required to provide additional information to Discord or to our payment processors, such as bank account information to facilitate payments, tax identification information, and copies of government issued identification required to identify users in accordance with regulatory obligations. If we decide to process our own payments in the future, we would receive and process this information ourselves.
- **Information from actions you take**. We collect information about your use of Discord and your activities on the services. This includes information such as the friends you add,

the users, bots, and apps you engage with, the servers or other communities you join and participate in, your roles in servers, content moderation decisions you m
about purchases or sales you make on or through Discord including what you purchased or sold, and other related actions. We may also collect limited information from your device while Discord is running (such as the game you are playing). You can control the extent to which we collect, use, and display this information as described in the "How to control your privacy" section below.

- **Information from optional features**. Certain features, like contact syncing, may require that you provide additional information (or grant us access to such information) to make them work. This also includes if you choose to interact with sponsored content, enable integrations, or authorize third-party services to share data with us. For example, when you link a music streaming or game account, we may collect information about that account such as the song you are listening to or the game you are playing in order to display that information on your profile or as your status (if you have chosen to do so).
- **Other information you provide directly to us**. You may have the option to submit additional information as you use Discord. For example, you may participate in surveys where you can provide feedback on the services, or submit information to our Discord Support teams.

Information we collect automatically

We also collect information automatically from you when you use Discord. This includes:

- **Information about your device**. We collect information about the device you are using to access the services. For example, this includes information like your IP address, operating system information, browser information, and information about your device settings, such as your microphone and/or camera.
- **Information about your use of the apps or websites**. For example, we collect log and event information related to how and when you use our services (such as the pages, servers, and channels you visit, the activities you engage in, the features you use, and the surfaces or embedded content you interact with).
- **Other information that we collect automatically**. When you take certain actions on other sites, we may receive information about you. For example, when we advertise for Discord on third party platforms, if you click on the ad, we may receive information about

which ad you saw and on which platform. Similarly, we may also receive certain information when you click on a referral link, such as which website you

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We may receive information from cookies (small text files placed on your computer or device) and similar technologies. You can find out more about Discord's cookie usage and how you can manage your cookie permissions in our Cookie Policy.

Information we receive from other sources

We may receive information about you from other sources, including from other users and third parties, and combine that information with the other information we have about you. For example, if you interact with our social media account on another platform, we may receive certain information about you like your username on that platform. Similarly, when we advertise on other services, we may receive information about your engagement with those ads. We may also receive information about you from advertisers and third-party data providers, such as demographic information and how you engage with other products and services outside of Discord.

HOW WE USE YOUR INFORMATION

Under certain data protection laws like GDPR, companies must have a "legal basis"—a valid reason—to process personal information. Discord relies on different legal bases to process your information for the purposes described in this Privacy Policy. We use the Information We Collect—Account information, Content you create, Payment information, Information from actions you take, Information used to enable optional features, Other information you provide directly to us, Information about your device, Information about your use of the apps or websites, other information that we collect automatically, and Information we receive from other sources—for the following reasons and according to these legal bases (where applicable). For each reason, we describe how we process your information to achieve each purpose. This processing can include use of automated technologies such as machine learning systems that help us power and improve our services. In certain jurisdictions, we rely on consent (implied or express) to collect, use and disclose personal information, subject to limited exceptions. As a result, the legal bases below may not apply to you. Please see Information About Local Privacy Laws page located here.

To fulfill our contract with you

- **To provide you with the services**. We use your information to provide you with the Discord services. For example, when you start a video call, we process your images and audio to make that work. We similarly collect and store the messages you send and display them as you direct. We also use the information you provide to us to create and manage your account and to facilitate purchases. When you enable optional features (like connecting your Discord account to other platforms), we use information to power the feature (like displaying what song you are listening to or game you are playing on another service within the Discord app).
- **To meet our commitments to the Discord community**. We work hard to try to make Discord a safe, positive, and inclusive place. To do so, we use your information to monitor for and take action against users and content that violate our Terms of Service, Community Guidelines, and other policies. This includes responding to user reports, generating transcriptions of content as part of our investigation, detecting fraud and malware, and proactively scanning attachments and other content for illegal or harmful activity. We also use certain information, which may include content reported to us, content that violates our Terms of Service, and certain other content widely available on the service (such as public posts, usernames, avatars, banners, user profiles, server names, server icons, and server banners), to create systems and models that can be automated to more swiftly detect, categorize, and take action against prohibited content or conduct.
- **To contact you**. We use your information to contact you in connection with your account, such as to verify or secure it with two-factor authentication. We may also use your information to contact you about important product or policy changes and to send you information about products you have purchased.
- **To provide customer service**. We use your information to respond to your questions about our products and services, and to investigate bugs or other issues.

For our legitimate business interests

- **To protect our services**. We use your information to keep our services secure, to prevent misuse, and to enforce our Terms of Service and other policies against users who violate them.

- **To report on our company's performance**. We use your information to track the fundamental metrics of our business, to perform financial reporting, to r regulatory obligations, and to debug billing issues.
- **To personalize the product**. We use your information to personalize our services. This can include customizing your experience on Discord so that you see communities, activities, applications, features or promotions from us, or other content that may be of interest to you. As discussed in the "How to control your privacy" section below, you can choose to what extent we will use your personal information to personalize your Discord experience.
- **To deliver relevant sponsored content**. We use your information to help us surface sponsored content (like Quests and other sponsored formats) that may be of interest to you. As discussed in the "How to control your privacy" section below, you can choose to what extent we will use your personal information to personalize your Discord experience.
- **To improve our services**. We use your information to help us understand how users interact with our services, what features or products users may want, to develop features that make Discord safer and better to use, or to otherwise understand and improve our services. This includes information about how you use our services and how servers are structured. We may also use certain content that is widely available to better understand, for example, what topics servers cover and what content is most interesting within those servers. Similarly, you can limit to what extent we use your personal information for these purposes.
- **To advertise our services on Discord and other platforms**. We are proud of the product we've built. We may tell you about our paid services and other features directly in the services and through our own channels, and we spend money advertising Discord on other platforms. As part of that, we use certain information to assist in the delivery of our advertising, to measure the effectiveness of advertisements for our own products, and to improve such advertisements in the future.
- **To contact you**. We may use your information to let you know about new products or features we think you'll like, to ask you for feedback about our services, or to tell you about experiments that might interest you. You may opt-out of receiving such marketing communications. Where local law requires, we will obtain your consent before sending such communications.

To comply with our legal obligations

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We retain and use your information in connection with potential legal claims, where necessary and for compliance, regulatory, and auditing purposes. For example, we retain information where we are required by law or if we are compelled to do so by a court order or regulatory body. Also, when you exercise any of your applicable legal rights to access, amend, or delete your personal information, we may request additional information from you for the purpose of confirming your identity.

With your consent

We may also collect and use personal information with your consent, such as to send you marketing communications and personalize sponsored content where legally required. You can revoke your consent at any time (mostly through our services directly), though note that you might not be able to use any service or feature that requires collection or use of that personal information.

To protect someone's vital interests

We may collect or share personal data if we think someone's life is in danger—for example, to help resolve an urgent medical situation.

HOW WE DISCLOSE YOUR INFORMATION

- **When you tell us to**. When you add your content to the services, you are telling us to make that content available to certain people or communities. Who can access that information is determined by who can access a particular space. For servers, those permissions are set by server owners or admins. They control whether a server requires an invite link or is open and accessible to anyone. And these permissions, like the size of the server, may change over time. Similarly, if you link your Discord account with a third-party service (like a music-streaming service or gaming platform), embed content, interact with third-party content posted on Discord, interact with users on other services who have linked their account, or participate in a server that has third-party features like

bots enabled, we may provide certain information to that service or to other Discord users to operate that content, service, or feature. Additionally, if you pu services from other users on Discord, we may disclose certain information to these users in order to facilitate the delivery of the goods or services purchased or help them understand and improve their business. We may also disclose your information as you otherwise instruct us or provide us your consent to do so.

- **With our vendors**. We may provide information to vendors we hire to carry out specific work for us. This includes payment processors like Stripe and PayPal that process transactions on our behalf and cloud providers like Google that host our data and our services. We may also provide limited information to advertising platforms to help us reach people that we think will like our products and to measure the performance of our ads shown on those platforms. We do this to help bring more users to Discord and make our business successful, and provide only the information required to facilitate these services. This may include information like the fact that you installed our app or registered to use Discord. We may also provide information to analytics and measurement partners to measure the effectiveness of sponsored content if you engage with it (for example, by starting a Quest or clicking on other sponsored content).
- **To comply with the law**. We may disclose information in response to a request for information if we believe disclosure is required by law, including meeting national security or law enforcement requirements. Where allowed and feasible, we may attempt to provide you with prior notice before disclosing your information in response to such a request. Our Transparency Report has additional information about how we respond to requests from governments and law enforcement entities.
- **To prevent serious harm.** We may disclose information if we believe in good faith that it's necessary to prevent death or other serious harm to a person.
- **To enforce our policies and rights**. We may disclose information if needed to enforce our Terms of Service, Community Guidelines, any of our other policies, or to protect the rights, property, and safety of ourselves and others.
- **With our related companies**. We may provide information to our related companies, including parents, affiliates, subsidiaries, and other companies under common control and ownership.
- **Sale, Acquisition, or Transfer of Assets**. We may disclose information if Discord is evaluating and/or engaging in a merger, acquisition, reorganization, bankruptcy, or sale,

transfer, or change in ownership of Discord or any of its assets.

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- **Aggregated or de-identified information**. We may disclose information aggregated or anonymized such that it cannot reasonably be used to identify you. For example, we may share aggregated user statistics in order to describe our business, features, or promotions to partners or the public.

DATA RETENTION

We retain personal information until we determine it is no longer needed for the processing purposes for which we collected or retain it or for legal compliance. You can learn more about data retention periods in our data retention policy.

HOW WE PROTECT YOUR INFORMATION

We take a number of steps to help protect your information. All information sent within our services is encrypted both in transit and at rest. For example, we use Transport Layer Security ("TLS") to encrypt text and images in transit. We also enforce technical and administrative access controls to limit which of our employees and contractors have access to nonpublic personal information. Voice and video communications on Discord are designed to be end-to-end encrypted. You can verify that your calls are encrypted in the service. Learn more about Discord's end-to-end encryption. You can help maintain the security of your account by configuring two-factor authentication.

HOW TO CONTROL YOUR PRIVACY

We believe that users should be able to tailor their Discord experience to their preferences, including privacy. And while local laws may require different things, we believe that our users should have at least the same basic ability to shape their experience no matter where

they are in the world. Here's how you can control how we process your information, how to delete or correct certain information, and how to request access to your inf certain places may have specific rights under their local laws. You can learn more about these in the Information About Local Privacy Laws page.

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Be aware of the Discord spaces you choose to participate in

You can choose what spaces to participate in and what information you add to our services. You can choose what messages to send or post, who to engage with (e.g., one or more particular users or a potentially unlimited group of users), what information to include in your profile, whether to connect any third party services to your Discord account, and more. For example, if you share content in certain spaces, such as servers listed in Server Discovery or with public invite links, your content may be accessed by anyone.

Customize your personal Discord settings

We offer a number of settings that allow you to tailor your experience within Discord. Some of these relate to specific features: for example, you can choose whether to display your current activity (like the game you are playing or the music you are listening to) in your status in your User Settings page (this is the gear icon next to your username).

You can also access other privacy-related settings in your User Settings. For example, you can decide whether to filter potentially explicit content, who can add you as a friend, and more. This is also where you can limit certain types of processing of your information:

- **Limit our ability to use your data to improve our services**. We offer certain settings that allow you to limit the information we collect to help us understand how users use our services, what features or products they may want, or to otherwise help us improve our business. If you turn off these settings, we will stop collecting and using new information about how you use and/or navigate Discord in order to understand and improve our services as described in these settings.
- **Limit our ability to personalize Discord for you**. We offer certain settings that control whether and how we may personalize Discord for you, such as offering you relevant recommendations for in-app content and features or delivering relevant sponsored content. If these settings are disabled, we will no longer use information specific to your

account to power features that personalize Discord for you as described in these settings.

You can learn more about these and other privacy-related settings in our Help Center or in the User Settings menu within Discord. The default and availability of some of these settings may be different depending on factors like your age or location.

Disable or delete your account

You can disable or delete your account via the User Settings menu. Disabling your account stops the processing of new data, but allows you to reactivate your account without interruption to you. Deleting your account permanently deletes identifying information and anonymizes other data as described in our data retention policy. You can learn more about how to delete your account in this Help Center article and how to disable your account in this Help Center article.

Manage your content and servers

You may edit or delete specific pieces of information within the services:

- You can edit or delete any message you have sent or content you have posted if you still have access to the space where you posted it.
- You can edit or delete a Discord server if you have the permissions needed to do so.
- You can edit or delete a channel from a Discord server if you have the permissions needed to do so.

Content may be retained by Discord for use as described elsewhere in this policy and in our data retention policy. Also, in limited circumstances, we may have a legal obligation to retain certain information, even if you delete the information or your account.

Access your information

If you want to see what information we have collected about you, you can request a copy of your data in the Data & Privacy section of your User Settings. You should receive your data packet within 30 days. Data is delivered in common digital formats, including JSON and any

other file format you used when uploading attachments to the services. You can learn more about how to access your information in our Help Center.

INTERNATIONAL DATA TRANSFERS

We are based in the United States, and we process and store information on servers located in the United States. We may also store information on servers and equipment in other countries depending on a variety of factors, including the locations of our users and service providers. These data transfers allow us to provide our services to you. By accessing or using our services or otherwise providing information to us, you understand that your information will be processed, transferred, and stored in the U.S. and other countries, where different data protection standards may apply and/or you may not have the same rights as you do under local law.

When transferring data outside the EEA, we use standard contract clauses (Module 1 and Module 2), and we rely on the European Commission's adequacy decisions about certain countries, as applicable, or other legally compliant mechanisms or conditions for such data transfer.

Discord and its U.S. entities/subsidiaries (Backgammon Merger Sub II, LLC, Brazos Games, LLC, Discord International, Inc, Flames Sub LLC, and Sentropy Technologies Inc.) also comply with the EU-U.S. and Swiss-U.S. Data Privacy Frameworks, as well as the UK Extension to the EU-U.S. Data Privacy Framework. If you have questions or complaints regarding our compliance with the Data Privacy Framework principles, please reach out to us at privacy@discord.com. If we do not resolve your complaint, you may submit your complaint in accordance with the section titled "Settling Disputes Between You and Discord" in our Terms of Service. Under certain conditions specified by the Data Privacy Framework principles, you may also be able to invoke binding arbitration to resolve your complaint. We are subject to the investigatory and enforcement powers of the U.S. Federal Trade Commission. In certain circumstances, we may be liable for the transfer of personal data from the EU, Switzerland, or the UK to a third party outside those countries.

In compliance with the EU-U.S. DPF and the UK Extension to the EU-U.S. DPF and the Swiss-U.S. DPF, Discord commits to cooperate and comply respectively with the advice of the

panel established by the EU data protection authorities (DPAs) and the UK Information Commissioner's Office (ICO) and the Swiss Federal Data Protection and Info Commissioner (FDPIC) with regard to unresolved complaints concerning our handling of personal data received in reliance on the EU-U.S. DPF and the UK Extension to the EU-U.S. DPF and the Swiss-U.S. DPF.

For more information about the Data Privacy Framework principles and to view our certification, please visit the U.S. Department of Commerce's Data Privacy Framework site.

In order to learn about the specific rights you may have regarding the international transfer of your personal data, please consult the relevant standard contract clauses or adequacy decisions or reach out to us at privacy@discord.com. The rights listed under 'Exercise your rights' will always apply, regardless of whether your data is transferred or not.

SERVICES OFFERED BY THIRD PARTIES

We allow third-party developers to build certain features or other services and offer them within the Discord services, or to incorporate certain Discord-powered features or functions into their services. For example, server administrators can add "bots" created by third-party developers that provide features like content moderation and interactive games. Similarly, you may have access to your Discord friends list or messaging capabilities in third-party games, or games or Activities built by third parties offered within the Discord services.

These third-party services need to follow all policies that apply to them (including often our Developer Terms of Service and Developer Policy). As part of these policies, we require developers to have a privacy policy that makes clear what they do with your information. Please review these privacy policies, as they describe what the third-party services may do with your information. We also require that certain popular apps apply for access to certain data. But because these services are operated by third parties, we don't control them or what information they collect. It's up to you whether to participate in a server or other space that uses apps, and whether to engage with third-party services in general.

DATA PROTECTION OFFICER

Discord

Open Discord

You can contact Discord Netherlands BV's Data Protection Officer at dpo@discord.com.

We've appointed VeraSafe as Discord's representative in the United Kingdom for data protection matters, pursuant to Article 27 of the UK General Data Protection Regulation. See the section "Contact Us" below. You can contact VeraSafe only on matters related to the processing of personal data.

INFORMATION ABOUT LOCAL PRIVACY LAWS

Certain local laws, such as the European Union's General Data Protection Regulation (GDPR), Brazil's Lei Geral de Proteção de Dados (LGPD), and California's Consumer Privacy Act (CCPA), require services to provide information about the information they collect, how they use it, and the lawful basis for processing it. We've described most of that already in the earlier portions of this Policy, but you can find state and region specific information and disclosures here.

Exercising your rights: As described in the "How to control your privacy" section above, all our users have control over their information and can directly edit or delete information from their account and limit what data we process. If you are located in certain regions, including the European Union, you may have additional rights such as those listed below, and as outlined in the state and region specific information and disclosures that you can exercise through the Discord app directly or by contacting us:

- Right of access to your personal data
- Right to rectify your personal data if it is incorrect
- Right to erase your personal data
- Right to limit the processing of your personal data
- Right to the portability of your personal data

- Right to object to the processing of your personal data
- Right to withdraw consent. Withdrawing consent does not affect the lawfulness of processing based on consent before withdrawal.

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If you have any questions about these rights or wish to exercise control over your information, please reach out to privacy@discord.com.

CHANGES TO THIS PRIVACY POLICY

We will update this Privacy Policy from time to time. We always indicate the date the last changes were published, and if changes are significant, we'll provide a more prominent notice as required by law, such as by emailing you or highlighting the changes within the services.

CONTACT US

Email us at privacy@discord.com with any questions about this Privacy Policy or how we process your information. We'll be happy to help.

To contact Discord's Data Protection Officer, please email dpo@discord.com.

You can also reach us by mail if you want. If you reside in the EEA, you can contact us at:

Discord Netherlands BV

ATTN: Privacy Policy

Schiphol Boulevard 195
1118 BG Schiphol,
Netherlands

If you reside anywhere else, you can contact us at:

Discord Inc.

ATTN: Privacy Policy

444 De Haro Street #200

San Francisco, CA 94107, USA.

If you reside in the United Kingdom, you can also contact VeraSafe, Discord's appointed representative for data protection matters related to the processing of personal data, using this contact form: https://verasafe.com/public-resources/contact-data-protection-representative or via telephone at +420 228 881 031. VeraSafe's mailing address is:

VeraSafe United Kingdom Ltd.

37 Albert Embankment

London SE1 7TL United Kingdom

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